

Opinion of the Court.

a treaty, his title cannot be protected by the treaty. If Scarth or his heirs had claimed it would have been a case arising under a treaty. But neither the title of Scarth nor of any person claiming under him can be affected by the decision of this court."

In *Henderson v. Tennessee*, 10 How. 311, a similar case, namely, an action of ejectment, an outstanding title in a third person, was set up by the defendant, and alleged to have been derived under a treaty. The court held that an outstanding title in a third person might be set up, and that the title set up in this case was claimed under a treaty, "but," said the court, "to give jurisdiction to this court, the party must claim for himself, and not for a third person in whose title he has no interest. . . . The heirs of Miller," who claimed under the treaty, "appear to have no interest in this suit, nor can their rights be affected by the decision." Like rulings were made under a similar state of facts in *Montgomery v. Hernandez*, 12 Wheat. 129; *Hale v. Gaines*, 22 How. 144; *Verden v. Coleman*, 1 Black, 472; and *Long v. Converse*, 91 U. S. 105.

In *Giles v. Little*, 134 U. S. 645, the prior authorities are cited, and the law treated as well settled that "in order to give this court jurisdiction to review a judgment of a state court against a title or right set up or claimed under a statute of, or an authority exercised under, the United States, that title or right must be one of the plaintiff in error, and not of a third person only." See also *Ludeling v. Chaffe*, 143 U. S. 301.

It is true that under the third clause of section 709, where a title, right, privilege or immunity is claimed under Federal law, such title, etc., must be "specially set up or claimed," and that no such provision is made as to cases within the second clause, involving the constitutionality of state statutes or authorities, but it is none the less true that the authority of such statute must "be drawn in question" by some one who has been affected by the decision of a state court in favor of its validity, and that in this particular the three clauses of the section are practically identical.

As we had occasion to observe in *California v. San Pablo & Tulare Railroad*, 149 U. S. 308, 314, "the duty of this court, as of every judicial tribunal, is limited to determining rights of